

Cert Lab Founders Agreement (Draft, 1 Sep 2026)

Cert Lab — Founders' Agreement

Draft — 1 September 2026 (for review by counsel; not legal advice)

This is a founder-drafted starting point for the three founders of Cert Lab. It reflects the choices given: the company is not yet formed, each founder holds an equal, fully-vested one-third, and Cert Lab is a sister company to Safety Lab Aero (separate legal entity, affiliated and offered together). Bracketed items [] are decisions to finalize. Engage a startup attorney before signing — especially on entity formation, the fully-vested / no-repurchase choice, IP, and tax.

Decisions to finalize (fill the brackets)

- **Entity type & state** — C-corp (typical if raising) vs LLC; state of formation.
 - **Each founder's role / title** and time commitment (full-time vs part-time).
 - **Initial capital contributions**, if any.
 - **Major-decision voting** — unanimous vs majority, and how a 3-way deadlock is broken.
 - **Founder-departure treatment** — you've chosen fully vested with no repurchase; see the optional buy-back clause in §12 if you want to revisit.
 - **Salary trigger** — when founders start drawing compensation.
 - **Governing-law state.**
 - **Safety Lab Aero relationship** — the sister-company structure (common/aligned ownership, shared IP & services, combined go-to-market or sale) to be documented separately (§8).
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1. Parties and Purpose

This Founders' Agreement (the "Agreement") is made as of [EFFECTIVE DATE] by and among **Ryan Pecoraro** ("Pecoraro"), **Daniel Etcheto** ("Etcheto"), and **Muhammad Waqas Nafees** ("Nafees"), each a "Founder" and together the "Founders," with respect to the business known as **Cert Lab** (the "Company").

The Company's business is [the development and provision of aerospace certification and safety-analysis software and related services] (the "Business"). The Founders enter into this Agreement to record their intentions on ownership, roles, intellectual property, and governance, effective now and carrying forward into the Company's formal organizational documents once the Company is formed.

2. Formation of the Company

The Company is **not yet formed**. The Founders intend to organize it as a [**C-corporation** / **limited liability company**] under the laws of the [**State**]. On formation, the Founders will

adopt organizational documents (certificate/articles and bylaws, or an operating agreement) consistent with this Agreement, and this Agreement's terms will be carried into and superseded by those documents to the extent they cover the same subject. Until the Company is formed, the Founders will conduct the Business in good faith under this Agreement and will not incur material obligations in the Company's name without the agreement required by §6.

3. Ownership — Equal Thirds, Fully Vested

The founding equity of the Company is owned equally by the three Founders: a **one-third (1/3) interest each** — Pecoraro one-third, Etcheto one-third, Nafees one-third — together 100% of the Company's founding equity ("Founding Equity"). (Expressed as a percentage this is 33.33% each; the parties intend exact equal thirds totalling 100%.) On formation, the Founding Equity will be issued as shares of common stock or membership units, as applicable, in these proportions.

Each Founder's Founding Equity is **fully vested and non-forfeitable as of the Effective Date**. It is not subject to any vesting schedule, and it is not subject to repurchase or forfeiture on a Founder's departure, except as the Founders may agree in writing (see the optional provision in §12).

Note (not a term): with three equal, fully-vested founders and no repurchase right, a founder who leaves early keeps their full third ("dead equity"). Many teams add either time-based vesting or a departure buy-back to protect the people who stay. You chose fully vested; §12 offers optional buy-back language if you want to reconsider with counsel.

4. Roles and Responsibilities

Each Founder will devote [full-time / part-time — specify] effort to the Business and will act in the Company's best interests. Initial roles:

- **Ryan Pecoraro** — [title / area]
- **Daniel Etcheto** — [title / area]
- **Muhammad Waqas Nafees** — [title / area]

Roles and titles may be changed by the agreement required in §6. Each Founder will keep the others reasonably informed about matters within their area.

5. Capital Contributions

Each Founder's initial contribution is [describe — cash, IP, prior work, or "services only"; or "none"]. No Founder is obligated to contribute additional capital. Any additional capital contribution, and any resulting change to ownership, requires the agreement in §6. No Founder earns interest on, or has a right to early return of, a contribution except as the organizational documents provide.

6. Governance and Decision-Making

Day-to-day decisions within a Founder's area are made by that Founder. The following **Major Decisions** require [**unanimous / majority**] written consent of the Founders:

- issuing, repurchasing, or reclassifying equity, or admitting a new owner;
- selling, merging, or dissolving the Company, or selling substantially all its assets;
- incurring debt or obligations over \$[**amount**], or granting security over Company assets;
- changing the nature of the Business;
- approving or amending founder compensation;
- entering a related-party transaction (including any agreement with Safety Lab Aero — see §8);
- adopting or amending the organizational documents.

Deadlock. If the Founders cannot agree on a Major Decision, they will [first attempt resolution through good-faith discussion and, failing that, non-binding mediation under §14 / other agreed mechanism]. The Founders should decide with counsel how a persistent three-way deadlock is ultimately resolved.

7. Intellectual Property

Each Founder hereby assigns, and will assign, to the Company all right, title, and interest in any invention, work of authorship, software, design, data, know-how, or other intellectual property that the Founder creates for or relating to the Business (the “Company IP”), and will execute the Company's standard confidential-information-and-invention-assignment agreement (PIIA) on or before formation. Intellectual property a Founder owned **before** this Agreement, or that is unrelated to the Business, is excluded and is listed on **Schedule A (Prior Inventions)**; if a Founder incorporates any such prior IP into a Company product, the Founder grants the Company a non-exclusive, perpetual, royalty-free license to use it in the Business.

8. Relationship with Safety Lab Aero

Cert Lab is a **separate legal entity intended to operate as a sister company to Safety Lab Aero** — the two companies are to be affiliated and marketed, packaged, and offered together while remaining distinct entities. The specific terms of that relationship — any common or aligned ownership, shared services, intellectual-property licensing between the companies, joint go-to-market or revenue sharing, and any combined financing or sale — **will be documented in one or more separate written agreements** approved as a Major Decision under §6. Nothing in this Agreement itself transfers intellectual property between Cert Lab and Safety Lab Aero. Because one or more Founders are also involved with Safety Lab Aero, transactions between the two companies are related-party transactions and will be handled as such (§6). [Founders and counsel to define the sister-company structure — including how ownership of the two entities aligns and how a combined sale would be handled — before it is relied upon commercially.]

9. Compensation

The Founders will serve **without salary** until the Company [is funded / reaches agreed revenue / the Founders agree under §6]. Reasonable, pre-approved business expenses will be reimbursed. Any founder salary or other compensation is a Major Decision (§6).

10. Confidentiality

Each Founder will keep the Company's non-public information confidential during and after their involvement, and will use it only for the Company's benefit — subject to the same carve-outs (public information, independently developed, legally compelled) as a standard confidentiality agreement.

11. Transfer Restrictions; Right of First Refusal

A Founder may not sell, pledge, or transfer any Founding Equity without first offering it to the Company and then, pro rata, to the other Founders on the same terms (a right of first refusal), and without the consent required by §6 — except for a permitted transfer for bona fide estate-planning purposes to a trust the Founder controls, provided the transferee agrees in writing to be bound by this Agreement. Any transfer in violation of this Section is void.

12. Departure of a Founder

Because the Founding Equity is fully vested (§3), a Founder who resigns, is removed, or otherwise ceases involvement **retains their Founding Equity**, subject to the transfer restrictions in §11 and any confidentiality and IP obligations, which survive.

Optional buy-back (include only if the Founders agree): *Upon a Founder ceasing to provide services to the Company, the Company (and then the remaining Founders, pro rata) will have the option, for [90] days, to repurchase all or part of that Founder's Founding Equity at [fair market value as determined in good faith by the Founders / a formula to be agreed]. Terms of payment: [lump sum / over [24] months]. — Left out by default per the "fully vested" choice; add with counsel if you want protection against dead equity.*

13. Non-Solicitation

For [12] months after ceasing involvement, a departing Founder will not solicit the Company's employees, contractors, or customers to leave or reduce their relationship with the Company. [Note: non-compete restrictions are limited or void under Colorado law and in several states — do not add a non-compete without counsel.]

14. Dispute Resolution; Governing Law

This Agreement is governed by the laws of the [State], without regard to conflict-of-laws rules. The Founders will try to resolve any dispute first by good-faith discussion, then by non-binding mediation, before pursuing [arbitration / litigation] in the courts or forum located in [county, State].

15. Term and Dissolution

This Agreement continues until the Company is dissolved or the Founders terminate it in writing. The Company may be dissolved only as a Major Decision (§6) or as required by law; on dissolution, its assets are applied to liabilities and then distributed to the Founders in proportion to their ownership.

16. Miscellaneous

Entire Agreement. This Agreement is the entire understanding among the Founders on its subject and supersedes prior discussions; once the Company's organizational documents are adopted, they control on any overlapping subject. **Amendment.** Only by a writing signed by all Founders. **Counterparts / E-signature.** May be signed in counterparts and by electronic signature. **Severability.** If a provision is unenforceable, the rest stays in effect. **No other partnership.** Until the Company is formed, nothing here creates a partnership or fiduciary duty beyond what is stated or required by law. **Notices.** In writing to each Founder's last-known email or address.

17. Signatures

Each Founder signs as of the Effective Date, intending to be legally bound.

Ryan Pecoraro

Signature: _____ Date: _____

Daniel Etcheto

Signature: _____ Date: _____

Muhammad Waqas Nafees

Signature: _____ Date: _____

Schedule A — Prior Inventions (per §7)

- Pecoraro: [list any pre-existing IP excluded from assignment, or "None"]
- Etcheto: [list or "None"]
- Nafees: [list or "None"]